

Mahendra Pratap Singh v. State of U.P. & 8 Others

Allahabad High Court · Division Bench · 6 April 2017 · Writ - C No. 4417 of 2017 · **Writ dismissed; CGRF order of 16.9.2016 stands; liberty to challenge the revised bill under Clause 6.5**

HEADNOTE

Where a consumer who paid nothing on a residential connection for 31 years challenges a CGRF order rejecting his complaint against a demand and recovery certificate, and the licensee has since issued a revised bill which the consumer has not challenged, the writ court is not the proper forum to test the correctness of the assessment. Grievance as to the demand is to be pursued under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A recovery certificate cannot be challenged in writ when the underlying bill — the basic order — is not under challenge; a consequential order cannot be subjected to challenge if the basic order is not. Finding no error in the CGRF order dated 16.9.2016, the Court dismissed the writ, discharged any interim order, and left the petitioner at liberty to challenge the revised bill under Clause 6.5. It did not examine the departmental ledger or decide whether the revised bill was correctly computed on average consumption.

FACTUAL SUMMARY

Mahendra Pratap Singh challenged the 16 September 2016 order of the Electricity Consumer Grievance Redressal Forum, Aligarh. He held a residential 1 KW connection (No. 027516), sanctioned and energised on 25 July 1985. An earlier 11 KW connection had been permanently disconnected on 14 August 1998. He paid nothing on the 1 KW load for 31 years. A demand/recovery of about Rs. 3,31,940 followed. His Clause 6.5 objection under the U.P. Electricity Supply Code, 2005 was rejected. He complained to the CGRF at Agra (Case No. 761 of 2016/Mainpuri), later transferred to Aligarh.

During the Forum hearing the licensee issued a revised bill dated 6 January 2016 for Rs. 1,69,784, and the District Magistrate, Mainpuri, issued a revised recovery certificate dated 30 January 2016. The petitioner deposited Rs. 18,000 on 4 March 2016 and nothing thereafter. The Forum rejected the complaint because he had challenged neither the revised bill nor the recovery certificate. In the writ he asked the Court to call for the departmental ledger, saying the revised bill was on average consumption rather than actual readings.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ not the forum for correctness of an assessment; recovery certificate not challengeable unless the bill is; liberty to Clause 6.5

QUESTION

Where the consumer challenges a CGRF rejection of a complaint against a demand and recovery certificate, without having challenged the revised bill, should the writ court examine the assessment, or is the consumer to proceed under Clause 6.5?

HOLDING

The writ court is not the proper forum to challenge the assessment. Grievance as to the correctness of the demand is to be taken under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and it is for that authority to examine the aspects the consumer raises. Without a challenge to the bill, a challenge to the recovery certificate does not arise: if the basic order is not under challenge, the consequential order cannot be subjected to challenge. The Court found no error in the CGRF order dated 16.9.2016, dismissed the writ, discharged any interim order, and clarified that the petitioner remains at liberty to challenge the revised bill under Clause 6.5 before the appropriate authority. ¶ 9-11

QUALIFIER

A Clause 6.5 objection to the original demand of about Rs. 3,31,940 had already been rejected. The liberty granted is to challenge the revised bill dated 6.1.2016.

FLAG Source PDF concatenates listing/interim orders of 31.1.2017, 2.2.2017, 27.2.2017, 28.2.2017 and 20.3.2017 (Tarun Agarwala, J. with Abhai Kumar, J. or Vivek Chaudhary, J.) and this 6.4.2017 disposal (Arun Tandon and

Raghvendra Kumar, J.J., Court No. 10). Pins are sequential unnumbered paragraphs of the 6.4.2017 order, treating 'Facts in short leading to the present writ petition are as under : ' as a heading: (1) challenge to CGRF 16.9.2016; (2) 11 KW PD 14.8.1998 and 1 KW SC No. 027516 from 25.7.1985; (3) 31 years unpaid, demand of Rs. 3,31,940 and odd, Clause 6.5 objection rejected; (4) CGRF Agra Case No. 761 of 2016/Mainpuri transferred to Aligarh; (5) revised bill 6.1.2016 Rs. 1,69,784, DM recovery letter No. 4835 dated 30.1.2016, deposit of Rs. 18,000 on 4.3.2016; (6) CGRF recorded no challenge to the revised bill or recovery certificate; (7) complaint rejected; hence the petition; (8) average-consumption/ledger argument; (9) writ not the proper forum, Clause 6.5; (10) recovery not challengeable without a challenge to the bill, with the three Supreme Court citations; (11) no error in CGRF, Clause 6.5 liberty, writ dismissed, interim discharged. Internal amount variants recorded as stated: revised bill Rs. 1,69,784 (para 5) and 'Rs. 1,66,000 and odd' (para 6). The 28.2.2017 order had directed deposit of Rs. 45,126 admitted to be payable and called for justification of surcharge of Rs. 1,21,163; the disposing bench did not take those points up.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the CGRF rejection was dismissed because the writ court is not the proper forum to test the assessment. The consumer was left at liberty to challenge the revised bill under Clause 6.5. ¶ 9, 11

clause-6.5-statutory-remedy-disputed-bill Correctness of the demand, including the contention that the revised bill was on average consumption without ledger readings, was held to lie in the Clause 6.5 procedure before the concerned authority. ¶ 8-9, 11

recovery-demand-notice-is-consequential-not-independently-challengeable The Court held that without a challenge to the bill, a challenge to the recovery certificate does not arise; the bill is the basic order and the recovery certificate the consequential order. Lead authorities: *Government of Maharashtra v. Deokar's Distillery*, *Barkat Ali v. Badri Narain*, *P. Chitharanja Menon v. A. Balakrishnan*. ¶ 10

bill-dispute-requiring-facts-relegated-to-competent-authority Whether the revised bill matched actual ledger readings or was only an average was not examined in writ; that factual controversy was left to the Clause 6.5 authority. ¶ 8-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE REVISED BILL DATED 6.1.2016 (STATED AS RS. 1,69,784 AND AS RS. 1,66,000 AND ODD), INCLUDING WHETHER IT WAS PREPARED ON AVERAGE CONSUMPTION WITHOUT ACTUAL LEDGER READINGS

The petitioner asked the Court to call for the departmental ledger. Left to a Clause 6.5 challenge of the revised bill. The Court did not quash or uphold the demand. ¶ 8-9, 11

NOT DECIDED — JUSTIFICATION OF SURCHARGE OF RS. 1,21,163 DEPICTED ON PAGE 63 OF THE PAPER BOOK

The 28.2.2017 interlocutory order required the Electricity Department to indicate that justification. The disposing bench did not address surcharge. ¶ order of 28.2.2017

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Government of Maharashtra v. Deokar's Distillery</i> (2003) 5 SCC 669 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge — applied here so that the recovery certificate could not be challenged without a challenge to the bill. The order cites 'Government of Maharashtra vs. Deokar's Distillery; (2003) SCC 669'; volume completed from the standard report of the same cause title.		Court	Applied
<i>Barkat Ali v. Badri Narain</i>	Cited with two other Supreme Court decisions for the proposition that if the basic order		Court	Applied

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
AIR 2008 SC 1272 Supreme Court of India	is not under challenge, a consequential order cannot be subjected to challenge.			
<i>P. Chitharanja Menon v. A. Balakrishnan</i> AIR 1977 SC 1720 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge. The order spells the name 'P.Chithranja Menon vs. A.Balakrishnan'.		Court	Applied